

National Transportation Safety Board

Office of the Chief Information Officer

FOIA Office (CIO-40)

Washington, DC 20594



May 13, 2026

Mr. Yuxuan Liu, Sr.
Chongzhou City Chongyang Town
Shangnan Street 199
Chengdu
611230 Sichuan
China

Re: National Transportation Safety Board (NTSB)
Freedom of Information Act (FOIA) No. FOIA-2026-00417
March 21, 2022, Wuzhou, China (DCA22WA102)

Dear Ziheng Zhang:

This letter responds to your FOIA request dated April 29, 2026, seeking the following records related to the above-referenced accident investigation:

1. Any NTSB internal memoranda, notes, or reports summarizing observations from the on-scene investigation or from the wreckage examination in China.
2. Any correspondence (emails, letters, or meeting minutes) between the NTSB and the Civil Aviation Administration of China (CAAC) regarding this investigation.
3. Any technical analysis, data readouts, or reports generated by NTSB personnel concerning the flight data recorder (FDR), cockpit voice recorder (CVR), or any recovered aircraft components.
4. Any records reflecting the NTSB's participation in the download and analysis of the recorders at the NTSB laboratory in Washington, D.C., including any non-substantive administrative records if the technical data itself is exempt.

As you may know, the China government was the lead investigative authority on Investigation No. DCA22WA102, in accordance with Aircraft Accident and Incident Investigation, Annex 13 to the Convention on International Civil Aviation (9th ed. 2001).

The Safety Board's enabling statute, 49 U.S.C. § 1114(f) addresses the Board's compliance with Annex 13 to the Convention on International Civil Aviation, and precludes the Board from releasing information from a foreign investigation, until the investigation fulfills specific criteria:

(f) FOREIGN INVESTIGATIONS. —

1 In general. —Notwithstanding any other provision of law, neither the Board, nor any agency receiving information from the Board, shall disclose records or information relating to its participation in foreign aircraft accident investigations; except that —

(A) the Board shall release records pertaining to such an investigation when the country conducting the investigation issues its final report or 2 years following the date of the accident, whichever occurs first; and

(B) the Board may disclose records and information when authorized to do so by the country conducting the investigation.

In this case, two years have passed since the date of the accident. Accordingly, the NTSB is releasing records relating to this investigation.

Records responsive to your request are available on NTSB's website at this link: [NTSB FOIA Portal-Reading Room](#), under Frequently Requested Items. We withheld certain information partially and in full pursuant to the exemptions specified below.

We withheld, pursuant to 5 U.S.C. 552(b)(4), commercially sensitive or proprietary information voluntarily given us “of a kind that would customarily not be released to the public by the person from whom it was obtained.” See Critical Mass Project v. NRC, 975 F.2d 871 (D.C. Cir. 1992). Pursuant to this exemption, we withheld 26 pages in full consisting of manuals and proprietary data.

We determined that certain documents are exempt from release under 5 U.S.C. § 552(b)(5) (“Exemption 5”), which exempts from disclosure “inter-agency or intra-agency memorandums or letters that would not be available by law to a party other than an agency in litigation with the agency, provided that the deliberative process privilege shall not apply to records created 25 years or more before the date on which the records were requested.” Exemption 5 protects agency records that are predecisional and deliberative. National Wildlife Fed’n v. U.S. Forest Serv., 861 F.2d 1114 (9th Cir. 1988); Jowett, Inc. v. Department of the Navy, 729 F. Supp. 871 (D.D.C. 1989). Overall, Exemption 5 justifies withholding material that reflects the Safety Board’s deliberative process in order to ensure the free flow of information during investigations and other agency work. Mead Data Cent., Inc. v. Department of the Air Force, 566 F.2d 242, 256 (D.C. Cir. 1977). Pursuant to this exemption, we partially redacted 122 pages and withheld 478 pages in full consisting of pre-decisional, deliberative material, preliminary information, analysis, and draft documents.

Personal information including autopsy information and graphic photographs, Social Security numbers, and other personally identifying details is withheld pursuant to 5 U.S.C. § 552(b)(6), which exempts from disclosure “personnel and medical files and similar files the disclosure of

which would constitute a clearly unwarranted invasion of personal privacy,” including items such as personal addresses, phone numbers, email addresses and similar sensitive data. Pursuant to this exemption, we partially redacted 192 pages and withheld 355 pages in full containing personal privacy-protected information.

With respect to the FDR files, specialized software is required to import and interpret the data. Even with the appropriate software, the data would not be usable without the manufacturer’s proprietary documentation. Additionally, there is no CVR transcript.

In several documents enclosed with this letter, we determined that exemption(s) to the FOIA required that we redact a limited amount of material. The redactions are clearly marked, and the applicable exemption(s) are noted at the place of the redaction.

Some of the responsive documents identified during our search originated with another federal agency, the Federal Aviation Administration (FAA). Pages or portions of pages that originated with the FAA have been marked as “Referred” or “Other Reason.” In accordance with standard government practice, these documents have been referred to the FAA for a determination on whether they may be released to you. You will receive a response from the FAA directly regarding these records.

We did not locate any other records responsive to your request other than this information.

The NTSB has completed processing your FOIA request, and we are waiving all fees at this time. In accordance with the standard codified in the statute, even where an exemption would otherwise apply, agencies may withhold information only when (1) the agency reasonably foresees that disclosure would harm an interest protected by one of the nine exemptions that FOIA enumerates; or (2) disclosure is prohibited by law. See 5 U.S.C. § 552(a)(8)(A)(i). The NTSB considered the foreseeable harm standard when reviewing records and applying FOIA exemptions in response to this FOIA request and has determined that releasing the records would create a foreseeable harm. Disclosure of the information would chill agency officials’ ability to candidly discuss policy options and confuse the public where options being considered are not ultimately adopted.

You may contact our FOIA Public Liaison at 202-314-6540, for any further assistance and to discuss any aspect of your request. Additionally, you may contact the Office of Government Information Services (OGIS) at the National Archives and Records Administration (NARA) to inquire about the FOIA mediation services they offer. The contact information for OGIS is as follows: OGIS, NARA, 8601 Adelphi Road-OGIS, College Park, Maryland 20740-6001, e-mail at ogis@nara.gov; telephone at 202-741-5770; toll free at 1-877-684-6448; or facsimile at 202-741-5769.

If you are not satisfied with the response to this request, you have the right to appeal this determination under the FOIA. You may administratively appeal by writing to the NTSB, Attn: Ms. Dana Schulze, Managing Director, 490 L'Enfant Plaza, SW, Washington, D.C. 20594. Your

appeal must be postmarked or electronically transmitted within 90 days of the date of the response to your request.

Sincerely,

for
Roger Castillo
Acting FOIA Officer